

SENATE No. 1096

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act supporting and honoring Immigration and Customs Enforcement lawful detainments (SHIELD Act).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/3/2025</i>

SENATE No. 1096

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 1096) of Ryan C. Fattman, Alyson M. Sullivan-Almeida and Steven George Xiarhos for legislation to support and honor detention requests by the United States Immigration and Customs Enforcement. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act supporting and honoring Immigration and Customs Enforcement lawful detainments (SHIELD Act).

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 276 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 20R the following section:-

3 Section 20S: Honoring Federal Immigration Detainers Issued by the United States
4 Immigration and Customs Enforcement

5 Section 20S. (a) For purposes of this section, the term “law enforcement agency” shall
6 include but not be limited to any state, municipal, college or university police department,
7 sheriff’s department, correctional facility, prosecutorial office, court, probation office, or any
8 other non-federal entity in the commonwealth charged with the enforcement of laws or the
9 custody of detained persons. Upon receipt of a written request from the United States
10 Immigration and Customs Enforcement requesting detention of an individual on the grounds that
11 there is probable cause that such person is a removable alien, law enforcement agencies shall

comply with the terms of any detainer request received under any of the following
circumstances:

(i) The individual has been convicted or charged with an aggravated felony offense as defined in 8 USC § 1101(a)(43), including but not limited to, murder, rape, sexual abuse of a minor, illicit drug trafficking, and illicit firearms trafficking.

(ii) The individual has been convicted or charged with a violent crime as defined in 18 USC § 16.

(iii) The individual has been convicted or charged with a criminal street gang offense as defined in 18 USC § 521.

(iv) The individual has been convicted or charged with a terrorism offense as defined in 18 USC Chapter 113B.

(b) Any law enforcement agency employee shall comply with a United States Immigration and Customs Enforcement detention request if said employee determines that the alien poses a threat to public safety, or other compelling argument supporting the alien's detention.

SECTION 2. This act shall take effect upon its passage.